

In the Court of the Munsiff of Karunagappally.

Present: Sri. K. Viswanathan Nair, M A. LL. B., Munsiff.

Tuesday the 29th July, 1986/7th Sravana, 1908.

O. S NO. 412 OF 1983.

BETWEEN

Plaintiffs:-

1. C. Sahadeva Valigan, Advocate Karunagappally residing in Kochumadom, Punnakulam Muri, in Kulasekharapuram Village, Karunagappally Taluk Quilon District.
2. A. Abdul Rehimankunju, Advocate, Karunagappally, residing in Kaunamathu House in Punnakulam Muri in Kulasekharapuram Village in Karunagappally Taluk, Quilon Dist.
3. Kuttan Pillai, Document Writer, residing in Kattuvela Puthen Veedu, in Thekkan Mynagappally Muri in Mynagappally Village in Kunna-thoor Taluk on their own behalf and on behalf of the vast majority of the people of Karunagappally Taluk.

AND

Defendants:-

1. The Kerala State Government through the Collector, Quilon Dist., Quilon.
 2. The District Superintendent of Police, Quilon Dist., Quilon.
 3. The Circle Inspector of Police, Karunagappally.
 4. The Regional Transport Officer, Quilon District, Quilon.
 5. The District Transport Officer, Quilon (K. S. R. T. C.) representing Public sector Fleet operators.
 6. M. Krishnaakumar, Proprietor, P. K. R. N. Saw Mill, Thiruvananthapuram, Kottiyam P. O., owner of the Bus 'Krishnaakumar Travels' representing all Private Bus Owners operating in Karunagappally Taluk.
 7. D. SOMADEVAN PILLAI, Proprietor, D. S. Electricals, Devaswom Buildings, Karunagappally owner and operator by agreement of K L D 3600 GRACE MOTORS representing Private Bus owners in Karunagappally Taluk.
 8. K. Perameewaran Pillai, Owner of T N P Talkies, Padanayarkulangara South: K P IV 297, Karunagappally representing the owner of Cinema theatres in Karunagappally Taluk, including himself.
 9. The Assistant Devaswom Commissioner, Karunagappally representing all the Public Sector Devaswoms in Karunagappally Taluk.
 10. Chella-Kuttian Pillai, employed as Teacher, S K V U P S Kozhikkodu, Secretary, Nediyaivila Devaswom Temple, Maruthoorkulangara South in a representative capacity representing all the Private Devaswoms in Karunagappally Taluk including the above Devaswom who possess sound amplifiers, permanently.
 11. M. Sreedharan, Proprietor, Social sounds and Social Printers, Padanayarkulangara North, Karunagappally on his own behalf and as representative of all the hirers of Loud Speakers in Karunagappally Taluk including himself.
 12. C. Vidhyadharan, Lottery Agent, Manjula Bakery, Boat Jetty Road, Alleppey who is a seller of lottery tickets in Karunagappally through his sub agents in his own individual capacity and in a representative capacity representing all the lottery agents in Karunagappally Taluk.
- Additional 13th defendant: Mani, son of Nanoo, residing in Maninangalathu house, Cheriazheekkaithura, Karunagappally Village.

Addl. 13th defendant impleaded as per order on I.A No. 1477/83 dated 5-1-1984.

This suit coming on for final hearing before me on 26-7-1986 in the presence of Sri. R. Sreekumar, Advocate for the plaintiffs and of Sri. K. Bhargavan, Government pleader for the defendants 1 to 5 and Sri. R. Balakrishna Pillai, Advocate for the 8th defendant and Sri. P. R. Sreenivasa Sastri, Advocate for the 9th defendant and Sri. N. V. Ayyappan Pillai, Advocate for the defendants 10th and 12th and Sri. N. Balakrishna Pillai, Advocate for Addl. 13th defendant and the defendant 6th, 7th and 11th being absent set *ex parte* and having stood over for consideration to this day the Court delivered the following:-

JUDGMENT

Suit for injunction-prohibitory and mandatory.

2. The facts which led to the present suit are as follows:- Plaintiffs 1 and 2 are practising lawyers at Karunagappally. 3rd plaintiff is a document writer who also has an office at Karunagappally. The suit is filed by the plaintiffs in representative capacity representing the vast majority of the people of Karunagappally Taluk. According to the plaintiffs there is indiscriminate use of sound amplifiers in Churches, Temples, Mosques and in other public places in Karunagappally. According to them prohibited horns are used in motor vehicles. Loud noise is caused by two wheelers without silencers. The grievance of the plaintiffs is that they and others find it difficult to concentrate in their work due to sound pollution. Their sound sleep is disturbed. Deafening sound causes mental strain and nerves tension. Intense, harsh and shrill noise affects the children and also the grown up. All these acts constituted public nuisance. Defendants 1 to 5 are responsible officers who are duty bound to enforce the rules regulating the use of loud speakers and prohibited horns. Defendants 6 and 7 are private bus owners who are impleaded as representatives of private bus owners in Karunagappally Taluk. 8th defendant is impleaded as the representative of the owners of Cinema Theatres. 9th defendant is impleaded as representative of public sector Devaswom whereas 10th defendant is impleaded as representative of private Devaswoms in Karunagappally Taluk. 11th defendant is impleaded as representative of all the owners and hirers of loud speakers in the taluk. 12th defendant is a well known lottery agent in Kerala who is impleaded as the representative of lottery agents.

3. It is alleged by the plaintiff that loud speakers are frequently used in flagrant violation of the provisions contained in the Kerala Police Act and in disregard to the conditions incorporated in the form of licence granted to the users of loud speakers. It is also alleged that the provisions in the Motor Vehicles Act are violated by using the prohibited horns. Defendants 1 to 5 had failed to enforce these statutory provisions. On these facts the suit if filed praying for a decree of mandatory injunction directing defendants 1 to 5 to take all legal steps to avoid sound pollution and prohibiting defendants 6 to 12 in causing sound pollution in the above said manner.

4. All defendants except defendants 6, 7, 8 and 11 entered appearance. Defendants 8 and additional defendant 13 have not filed any written statement.

5. Defendants 1, 3 and 4 filed a joint written statement contending as follows:- The suit is not maintainable either in law or on facts. It is hit by Section 80 C P C. Plaintiff do not represent the vast majority of the people of Karunagappally Taluk. There is no sound pollution as alleged. Appropriate legal steps are taken by defts 1 to 5 whenever indiscriminate, illegal

and competitive use of sound amplifiers, prohibited horns etc. are brought to their notice. They are complying with all the prescribed statutory rules and norms. They have never failed to discharge their statutory duties. There is no negligence on their part as alleged. Innumerable vehicles from different districts and states are plying through NH 47. The absence of horns in these vehicles will cause danger and accidents. Plaintiffs have no cause of action. Hence they pray for dismissal of the suit.

6. Defendants 2 and 5 adopted the contentions raised in the written statement of defendants 1, 3 and 4 vide memo recorded on 20-7-1985.

7. 9th defendant filed a written statement contending as follows:- The suit is not maintainable. The suit is devoid of any truth or bonafides. Plaintiffs have no right to institute the suit representing the vast majority of the people in Karunagappally. 9th defendant is not a necessary party to the suit. In public sector Devaswoms' loud speakers are not using in such a way as to cause nuisance to the public. Ordinarily in temples' loud speakers are using from 5 A M to 6 A M and from 6 P M to 7 P M and during the festival seasons only for singing hymns. The said hours are not the working hours or the sleeping hours of the people. Plaintiffs have no cause of action against this defendant. Plaintiffs are not entitled to any relief against this defendant. This defendant is not liable for the costs of the plaintiffs. So he prays for dismissing the suit with his costs.

8. 10th defendant's contentions are as follows:- He is an unnecessary party to the suit. He does not represent private devaswoms. He is not liable to represent other devaswoms. It is true that he was the Secretary of Nediavila temple, Maruthoorkulangara from 16-2-1982 to 1-2-1983. He resigned from that post on 1-12-1983. Hence his successor has to be impleaded no kind of sound pollution is being suffered by the public at Karunagappally. Contrary averments are not true. Plaintiffs are residing away from Karunagappally Town and from NH 47. A mike set is purchased by the above said temple. It is being used for the last 12 years without any public nuisance and subject to the existing rules and regulations. That mike set is operated within minimum volume. A decision is taken by the executive committee in its meeting held on 12-6-1982 to operate the mike within a minimum volume of sound confined within the temple premises. No kind of nuisance is caused to the plaintiff. There is no cause of action. As the suit lacks bonafides against the 10th defendant he prays for its dismissal with costs as well as compensatory costs.

9. 12th defendant's contentions are as follows:- He has no business interest in Karunagappally Taluk. He is not a necessary party. He does not represent the lottery agents. There is no cause of action against him. He also prays for dismissing the suit with his costs and compensatory costs.

10. On the above pleadings the following issues were raised for trial:-

1. Whether the suit is maintainable?
2. Whether plaintiffs are competent to sue in representative capacity as alleged?
3. Whether defendants 6 onwards are liable to be sued in representative capacity?
4. Whether defendants 6 onwards is causing nuisance by sound as alleged?
5. Whether defendants 1 to 5 are negligent in enforcing statutory duties under various statutes regarding abatement of nuisance?
6. Whether plaintiffs entitled to the mandatory and prohibitory injunction prayed for?
7. Reliefs and costs.



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11. Evidence in this case consists of the oral testimony of PWs 1 to 5, DWs 1 and 2 and Exhibits A1 to A7 and B1 to B3 (c).

12. Issue No. 2:- Plaintiffs 1 and 2 are two practising lawyers at Karunagappally. 3rd plaintiff is a scribe by profession. These plaintiffs filed the above suit in their individual capacity and claiming themselves to be the representatives of the general public who reside in Karunagappally town and its suburbs. The reliefs sought for in the plaint if found allowable will promote public welfare and further public interest. In short it can be seen that the plaintiffs are waging a war seemingly against noise pollution, which has become a menace to the society. The present suit is filed in a representative capacity for which purpose publication under Order 1, Rule 8 C. P. C. was made. Even though notice under Order 1 Rule 8 was published in the local news paper none has filed any objection so far challenging the competency of the plaintiffs to represent the members of the general public in Karunagappally. Therefore it is idle to argue that the plaintiffs are incompetent to file a suit representing the general public with a view to suppressing general mischief. So I hold that plaintiffs are competent to sue in a representative capacity.

13. Issue No. 3:- The contesting defendants have no case that they do not belong to the class in which they are sought to be represented. In a suit to prevent sound pollution the parties against whom the reliefs are claimed are so numerous. It is impossible for the plaintiffs to implead all of them in the array of defendants. None has come forward immediately after the publication of Order 1, Rule 8 C P C objecting that they are not competent to be sued in a representative capacity. So as matters now stand there is nothing to blame the plaintiffs for having impleaded defendants 6 on wards in a representative capacity.

14. Issue 4 to 6:- Plaintiffs pray for two reliefs-mandatory and prohibitory injunctions. In order to entitle the plaintiffs the grant of a mandatory injunction it must be shown that the defendants against whom such a relief is claimed owe a statutory duty towards the plaintiffs and that there is breach of that duty. Likewise the question whether a prohibitory injunction is to be granted or not depends on the question whether the defendants are guilty of any wrongful act against the plaintiffs, the continuance of which if not restrained, will cause nuisance or annoyance to the latter. In the case on hand it is alleged by the plaintiffs that there is indiscriminate use of horn type loud speakers from which loud, harsh, and penetrating sound is emitted into the atmosphere and this in turn causes discomfort and annoyance to the general public including the plaintiffs. It is evident from the testimony of PWs 1 to 3 that the horn type loud speakers are used throughout Karunagappally. The allegation substantiated by evidence cannot be disputed at all. In paras 5, 6 and 10 of the plaint there are specific allegations regarding the sound pollution, its adverse effect on the health and comfort of the general public and the blame worthy conduct on the part of the responsible Government Officers, regarding their failure to abate the nuisance. There is no specific denial of these allegations either by the Government Officials or by the other contesting defendants. No one can dispute the fact that sound pollution beyond tolerable limits will cause adverse effect on the health and comfort of the public. It is to remedy such an evil the present suit is necessitated. So I have to confine the enquiry on two aspects viz. (1) Whether the public at large in Karunagappally is suffering from sound pollution. (2) Whether defendants 1 to 5 are guilty of statutory negligence in enforcing the provisions of law if any, to abate the noise nuisance. Before making the enquiries as aforesaid and entering into the regions of evidence I would like to deal with the tolerance limits of sounds and the degree of harm which noise above tolerable

limits can cause. Sound is measured in decibels. Intensity of sound upto 70 decibels is comfortable to human ear. Even though sounds upto 80 decibels do not produce adverse effect or discomfort, the intensity of sound above 90 decibels is harmful to human beings. If a person is constantly exposed to sound of intensity above 80 decibels he becomes permanently deaf. Occasional exposure to sound of 150 decibels can destroy the delicate auditory cells. Sounds of 150 decibels can cause deafness. Sounds of 180 decibels is fatal. Uaduly loud sounds in addition to cause deafness can bring about other undesirable changes in human system. It will cause anxiety, fear, restlessness and high blood pressure. The abdominal muscles can undergo change. The pupil of eye may dilate, thereby adversely affecting vision. All these aspects are dealt with by a learned author K. G. RADHAKRISHNAN, PANTHALAM in his thought provoking articles "ശബ്ദം, ആരോഗ്യം, കർമ്മശീതം" which appeared in the Malayala Manorama daily dated 13-1-1983. The most popular daily Malayala Manorama in its daily dated 16-3-1984 has used one full page to alert to the general public, the general consequence of the sound pollution due to the use of horn type loud speakers. It is stated in that 'feature' that sound pollution will cause abortion. Exhibit A7 is a copy of the Mathrubhoomy weekly dated 16-1-1983. An article authorised by Dr. S. Mohan, is published in that weekly. It is stated by that learned author that the high intensity of sound is dangerous, that it will increase pulse beat, that it will cause hyper tension and stress and that it will cause cardiac illness. It is also stated in the above article that the loud speakers can produce sound up to 130 decibels and the said sound is most harmful to human beings. Authoritative books on medical science deal with noise induced deafness. For Eg: JOHN C. BELLANTYNE & OTHERS in their book "A SYNOPSIS OF OTOLARYNGOLOGY", defines noise induced hearing loss as:

"Injury to the inner ear caused by prolonged exposure to loud noise in certain industrial occupation. The cochlea is affected. Vestibular function remains normal in almost all cases. Tinnitus may be especially troublesome."

The learned authors say further:

"Continued exposure to sounds above a sound pressure level of 85 DB. is unsafe (sounds of lesser intensity may cause annoyance, fatigue and mental trauma, but not deafness) Degree of deafness is proportionate to duration of exposure, though there is marked variation in individual susceptibility. Small arms fire comes in this category. Examples are to be found in many occupation (Eg: mining, drop forging, pile driving, chip-ping, hammering, riveting or drillish)"

PW3 is a Doctor who is specialised in E N T Branch. He deposes that excessive sound will cause damages to ear-drum. He swears that the intensity of sound which is produced by loud speakers if exceeds 130 decibels will result in rupture of ear drums. He is consistently swearing that constant exposure to sound will adversely affect the entire human body and that it will cause blood pressure. He resides one furlong away from the Karunagappally Civil Station. According to him he has suffered discomfort due to sound pollution. PW4 is a professor and Head of the Department of Electronics in T K M Engineering College, Quilon. A close look at his testimony will show his deep knowledge in sound and its consequence. He swears that box type loud speakers scatters sound and that horn type loud speakers will produce sound upto 120 decibels. He also swears that the intensity of sound from box type loud speakers is lesser than the horn type loud speakers and it is not so harmful to the human beings. From the above discussion it follows that it is dangerous to expose oneself to sound above 80 decibels. Continuous exposure to such an intensity of sound will cause discomfort and annoyance to the public. It affects



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the health of the public. Any person who causes such annoyance discomfort or unhealthy environment is guilty of nuisance. If such a nuisance affects the public at large it will amount to public nuisance.

15. Keeping in mind the above conclusion I am expected to consider whether ear splitting sound waves are emitted into the atmosphere through horn type loud speakers and prohibited horns. Like other towns in Kerala, Karunagappally is also well known for various kinds of worships in Mosques, Temples, and Churches. Morning hymns are thunderously magnified into the atmosphere through loud speakers from Churches, Mosques and temples. This is usually done from the early morning till very late in the evening. Mob meetings held by politicians of different parties are a source of nuisance to the general public. In all these meetings horn type loud speakers are frequently used without any respect for the stillness and calmness which others require to carry on normal way of life. Horn type loud speakers are used in moving vehicles. No public office in Karunagappally can have a smooth functioning undisturbed by noise. Even this court which is housed in the Civil Station buildings and that too under the nose of a nearby police station cannot have its normal functioning in stillness and calm. I have no doubt to say that because of the use of horn type loud speakers no one in Karunagappally can lead a normal life. Intensity of sound is increasing day by day. Religious devotees, politicians and others who are engaged in advertisements and the sales of lottery and other items are using horn type loud speakers in a competitive manner. They are bent upon deafening the entire area. This conclusion I reached is not on surmises or conjectures but is founded on evidence and evasive denial of plaint allegations. PWs 1 and 2 have sworn in categorical terms that public nuisance is caused to the plaintiffs and other members of the public due to the use of horn type loud speakers and prohibited horns in motor vehicles. The evidence let in by PWs 1 and 2 has not been impeached in cross examination. Their evidence is corroborated by the testimony of PW5, who earns his livelihood by engaging in Watch repairing business in a shop which situates near Karunagappally junction. PW5 deposed that he used to work from 8 A.M to 8 P.M and that he loses concentration due to loud noise which is emitted into the atmosphere through loud speakers. The overwhelming evidence of PWs 1, 2 and 5 coupled with the evasive denial of plaint allegations in the written statement, is sufficient to disbelieve the version of DW1, that there is no unrestricted use of loud speakers. The above discussion leads me to the conclusion that defendants 6 onwards the persons whom they represent and all other connected persons are guilty of noise nuisance. The wrongful acts committed by them in this regard will come within the part of jurisprudence dealing with public nuisance.

16. Next I may enter into the question whether there are any statutory provisions to curb noise nuisance caused by horn type loud speakers and prohibited horns in Motor vehicles. Unlike in England in India the law relating to this branch of nuisance is scattered in various statutes. It is a civil as well as a criminal wrong. Chapter VI of the Public Health Act deals with abatement of nuisance. The Act defines the word nuisance in Section 2 (27) in a wider manner so as to include the noise nuisance complained by the plaintiff in this case. The public health authorities appointed under this Act is one of the Wings of the Government. That authority is empowered by this Act to abate the occurrence and recurrence of nuisance. Section 268 of the Indian Penal Code defines public nuisance in a wider manner so as to include the annoyance caused to persons by the use of loud speakers and prohibited horns. Thus the penal code penalises noise nuisance. Section 18 of the Kerala Police Act 1960 confers powers on the District Magistrates to make rules in any local area, with the previous sanction of the Government and in



consultation with the municipal and other local authorities with regard to the matters specified in sub clause (a) to (j). As per clause (b) can make rules for licensing, controlling or in order to prevent the obstruction, inconvenience, annoyance, risk, danger or injury to passers by or the resident in the vicinity, prohibiting the keeping of places of public resort, the playing of music in streets and public places, the operation of loud speakers in or within hearing of a street or public place. No such notification appears to have been made regulating the use of loud speakers in Karunagappally.

17. There is no contention for the defendants-officials that a notification under Section 18 has already been passed. No such notification has been published even pendente-lite. It shows that the first defendant-Government is not inclined to take serious note of the grave danger of Public nuisance caused by the loud, strill and penetrating noise. In the course of evidence DW1 has conceded that Exhibit A3 is a model form which is used for issuing sanction to operate loud speakers. It contains almost 7 conditions. The condition No. 2 says:-

- (a) The sound amplifier or apparatus shall not face or be used within hearing distance from a hospital, place of worship, educational institution or public offices.
- (b) The use of sound amplifier should not be nuisance or obstruction to the inhabitants or persons dwelling or occupying the immediate vicinity.
- (c) The announcement should not be heard at a distance of more than 500 yards from the place where the sound amplifier is.

The 6th condition prohibits the use of the sound amplifiers in moving vehicles. Condition No. 3 provides that the use of sound amplifiers should not be a nuisance. All these conditions incorporated in Exhibit A3 are intended for the health, safety and general comfort of the public.

18. Multi-toned horns and other kinds of prohibited horns are banned by the Motor Vehicles Rules 1961. Rule 285 (2) says "save when permitted by the Regional Transport authority no motor vehicle shall be fitted with any multi-toned horns giving a succession of different notes or with any other device giving an unduly harsh, shrill, loud, or alarming noise."

Rule 397 of the above said rules reads as follows:-

"No driver of a motor vehicle shall sound the horn or other device for giving audible warning with which the motor vehicles equipped, or shall cause or allow any other person to do so to an extent beyond that which is reasonably necessary to ensure safety."

19. All these statutory provisions undoubtedly focus towards the public health point of view rather than the pleasure or the happiness of a handful of minority. There is no doubt that the nuisance complained of by the plaintiff is a public nuisance which comes within civil law. SALMOND says in his Law of Torts, 18th Edition, at page 47 as follows:-

"It is an act or omission which materially affects the reasonable comfort and convenience of life of a class of Her Majesty's subjects." To seek redress against such a nuisance it is not necessary to establish that every member of the public has been affected. It will suffice if the nuisance is so wide spread in character and indiscriminate in nature. The proved facts in the case make it abundantly clear that the acts complained of by the plaintiff will constitute that branch of civil law dealing with public nuisance. On an evaluation of the statutory provisions aforesaid it can be seen that these provisions are enacted by the legislature with the avowed object of protecting the public at large. So the question which naturally falls for consideration is whether these provisions are implemented. The evidence let in by PWs 1, 2 and 5 is patent to show that all these statutory provisions are violated rather



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than implemented or obeyed. A mere ipse dixit of DW1 that there is no indiscriminate use of loud speakers and that appropriate actions are taken against those who violate these provisions are not sufficient without sufficient corroboration. Even apart from the oral evidence the court can take judicial notice of the fact that horn type loud speakers are frequently used during the office hours by politicians and others and thereby it affects the smooth functioning of this court and other public offices. The evidence in this case will demonstrate that all the 7 conditions in Exhibit A3 are flouted by the licensees even in the sight of those who granted it. Exhibits B1, B1 (a) B2, B2 (a) and B2 (b) are used as the trump cards by DW1 to meet the case of the plaintiff. Exhibit B1 is the petty Case Register of the Karunagappally Police Station from 1-1-1983 to 15-4-1983. Exhibit B1 (a) is an entry in Exhibit B1 which shows that a petty Case No. 121/83 was taken for using loud speakers without licence. Ext B2 (a) and Ext B2 (b) are two entries in Ext B2 register (pertaining to the period 6-1-84 to 15-3-84). These two cases are taken for using loud speakers without licence. This suit is filed on 28-11-83. The cases in Exhibit B2 are taken subsequent to the institution of the suit. The case in Exhibit B1 and also the case in Exhibit B2 are taken for using loud speakers without licence. No one is so far prosecuted for having used a loud speaker in violation of the conditions incorporated in Exhibit A3. There is no case for DW1 that the mike sets of those who violated the condition in Exhibit A3 are seized. DW2 is the erst while Secretary of the 10th defendant Devaswom. He resigned from that post with effect from 1-12-1985 as is evidenced from Exhibit B3 (b). It is sworn to by DW2 that a mike set was purchased by the temple at about 15-4 years back. But it is curious enough to note that he did not even seek the sanction for operating the said loud speaker. According to him the sanction was obtained subsequently to his resignation. This itself will show that the 10th defendant was using the loud speaker without the sanction from 3rd defendant even long before the institution of the suit. It is admitted by DW2 that even on 9-12-1984 no sanction to the loud speaker was obtained. So the evidence of DWs 1 and 2 instead of supporting the defendants' case will prove the plaintiffs' case that loud speakers are used without proper licence. No satisfactory evidence has been let in by the defendants that the statutory provisions as aforesaid are scrupulously obeyed. Defendants 1 to 5 owe a statutory duty to the plaintiffs and other members of the public to see that necessary legal steps are taken against those who violates the above mentioned statutory provisions which are intended for the health, comfort and convenience of the general public. It is argued on behalf of the contesting defendants that there is no sufficient machinery to enforce those statutory provisions. This is not a justification for allowing persons to perpetrate wrongs. The legislature enacted these Laws keeping in mind the well being of the public. All these laws clothe the officers of Government with various powers to implement these provisions. So it is for the executive Wing of the Government to enforce these rules. Failure to enforce these provisions will afford a cause of action to any one of the members of the public to institute a suit against the delinquent officers even though no special harm is caused to him. The reason is that these provisions are aimed at public welfare. The argument of the learned Government Pleader that there is no enforcement machinery for the Government will no doubt will amount to an affront to the legislature. When a licence as Exhibit A3 is issued by a police officer he is duty bound to see that the conditions incorporated therein are strictly obeyed. It is not necessary for every citizen to inform, that too at the displeasure of the miscreant, about the violation of the conditions therein. To sum up, the above discussion leads me to the irresistible conclusion that defendants 1 to 5 owe a statutory duty to the plaintiffs and



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others to see that the above mentioned statutory provisions are not violated. It is also proved to the guilt that there is dereliction of duty on the part of defendants 1 to 5 to enforce these provisions. In such cases the plaintiffs like other members of the public can knock the doors of the Court and invoke the equitable jurisdiction of the court for the grant of injunction. So the question to be considered is as to what kind of injunction and against whom it is to be issued. It is argued that if an injunction is granted the court may not be in a position to supervise the acts which the plaintiffs seek to restrain. Of course, there may be practical difficulties. These difficulties can be tied over if the public are conscious of the rights recognised by the decree. If a decree is granted for the benefit of the general public they can enforce the mandate therein by alerting the court then and there when it is violated. Besides Order 21 Rule 32 C P C is wide enough to direct against a party who disobeys a decree however high or low his position in the society be. A prohibitory injunction in general terms against the use of horn type loud speakers without prejudice to the use of box type will meet the ends of justice. A direction to defendants 1 to 3 in the form of a mandatory injunction to take all such steps as are necessary to prevent sound pollution caused by horn type loud speakers and to enforce strictly the conditions in Exhibit A3 licence will act as sufficient safeguard against sound pollution. At this juncture I have to appreciate the difficulties in granting an executable decree against the use of prohibited horns in vehicles. National High way passes through Karunagappally. A large number of vehicles are being plying through out day and night. Most of these vehicles are coming from various states and also from various parts of this State. In such a situation it is impossible for the authorities in Karunagappally to hunt after those vehicles which uses prohibited horns. Therefore I am of the opinion that, that part of the reliefs relating to prohibited horns in motor vehicles and two wheelers without silencers is to be refused. A decree for prohibitory and mandatory injunctions have to be granted in the line herein below given. It is in evidence that the 10th defendant is now no more the Secretary of the Devarwom. Therefore interest of justice will be met if all the temples in Karunagappally are restrained from using horn type loud speakers in temple premises. It is made clear that no personal liability is imposed upon the 10th defendant.

20. Issue No. 1:- In view of what is stated above this suit for injunction is maintainable. Necessary sanction under Sub-Section (2) of Section 80 has been obtained by the plaintiffs. Likewise leave to sue is obtained under Section 91 C P C. Therefore there is no legal or factual bar as regarding the maintainability of the suit. Issue found in favour of the plaintiffs.

21. Before parting with the judgment I take it as a pleasure to appreciate the plaintiffs who approached the court with a suit of this type and having fought for a cause in the interest of general public. I also record my appreciation for the learned counsel who enlightened me on various aspects in the complicate branch of law relating to noise pollution.

22. Issue No. 7:- (See decretal portion)

In the result, the suit is decreed as follows:- Defendants 1 to 3 are hereby directed by a decree of mandatory injunction to take all such steps as are necessary to prevent sound pollution caused by the use of horn type loud speakers. It is made clear that these defendants shall take necessary care to see that no sound amplifier is operated and sound emitted in the atmosphere through horn type loud speakers in violation of the conditions in Exhibit A3 model licence form. Defendants 8 to 13 in their individual capacity and as representative of those whom they represent are hereby restrained by an order of prohibitory injunction from hiring and using any horn type loud speakers within Karunagappally Taluk. It is made clear that no horn type loud speakers shall be used or operated by any one who ever within Karunagappally.

Taluk. It is further made clear that the decree of prohibitory injunction here by granted shall not be a bar in using horn type loud speakers.

Plaintiffs are directed to publish and circulate at their expenses sufficient number of notices for the information of the general public that a decree of this type has been passed by the Court prohibiting the use of horn type loud speakers. Any member of the general public is at liberty to file an execution petition against any one who violates the terms of the decree. Parties will suffer their respective costs.

Pronounced in open Court this day the 29th July, 1986.

Sd/- K. Viswanathan Nair,
Munsiff.

APPENDIX

Exhibits for the plaintiffs:-

- | | | |
|----|------------|---|
| A1 | 15-11-1983 | Postal receipt |
| A2 | ... | Postal acknowledgment |
| A3 | ... | Kerala Police Model form proceedings of the Circle Inspector of Police sound amplifier installation and use issued by the Circle Inspector of Police, Pathanamthitta. |
| A4 | ... | Postal acknowledgment |
| A5 | ... | do. |
| A6 | ... | do. |
| A7 | 16-1-1983 | Mathrubhoomi weekly |

Exhibits for the defendants:-

- | | | |
|--------|---|---------------------------------|
| B1 | Sentry Relief Book (Petty Case register) of Circle Inspector of Police, Karunagappally for the year 1983. | |
| B1 (a) | do. | do. Case No. 121/83. |
| B2 | do. | do. for the year 1984. |
| B2 (a) | do. | do. Case No. 88/84 (Entries in |
| B2 (b) | do. | do. Case No. 89/84 (B2 register |
| B3 | Minute Book of Nediavila Temple from 16-2-82 to 29-4-1986. | |
| B3 (a) | Minute Book of Nediavila Temple meeting No. 7 dt. 12-6-1982. | |
| B3 (b) | do. | do. No. 19 dt. 1-12-1983, |
| B3 (c) | do. | do. dated 9-12-1984. |

Witnesses for the plaintiffs:-

1. Abdul Rehiman Kunju (2nd plaintiff)
2. Salim
3. Dr. M. Sivasuthan (Medical graduate)
4. Dr. K. V. Purushothaman
5. Somawarma

Witnesses for the Defendants:-

1. Ashokan (Circle Inspector of Police, Karunagappally)
2. Chella-Kuttan Pillai (10th Defendant)

Id/- Munsiff.

/True Copy/

Sd/- Munsiff.

Compared by:-

Tanis is a true copy